

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 544

BY COMMERCE AND HUMAN RESOURCES COMMITTEE

AN ACT

RELATING TO LEAVES OF ABSENCE FOR MILITARY DUTY; AMENDING SECTION 46-216, IDAHO CODE, TO REVISE PROVISIONS REGARDING LEAVES OF ABSENCE FROM REGULAR DUTIES FOR MILITARY DUTY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 46-216, Idaho Code, be, and the same is hereby amended to read as follows:

46-216. LEAVE OF ABSENCE FROM REGULAR DUTIES FOR MILITARY DUTY. All officers and employees of the state of Idaho who ~~shall be~~ are current members of the national guard or who ~~shall be~~ are current reservists in the armed forces of the United States, shall be entitled each calendar year to ~~one hundred twenty (120)~~ one hundred sixty (160) hours of military leave of absence from their respective duties without loss of pay, time, or efficiency rating during which they shall be engaged in military duty ordered or authorized under the provisions of law. State employees assigned to ~~"uncommon tours of duty"~~ shall have the above-referenced ~~one hundred twenty (120)~~ one hundred sixty (160) hours of leave prorated proportionally to the number of hours in their regularly scheduled biweekly pay period. Administration of paid leave for ~~"uncommon tours of duty"~~ military duty shall be consistent with the federal office of personnel management (OPM) definitions and pay administration guidance for similarly situated federal employees.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.